

M/s Matrumal Dhannalal Oil Mill v. State of U.P.

Allahabad High Court · Division Bench · 15 October 2014 · WRIT - C No. 54216 of 2014 · **Representation on interest on security directed to be disposed of.**

HEADNOTE

The petitioner mill pressed only for disposal of its 8 May 2014 representation seeking interest on security deposit under Section 47(4) of the Electricity Act, 2003 and Clause 4.20 of the Electricity Supply Code, 2005. The Division Bench directed the fourth respondent to dispose of that representation in accordance with law by a reasoned order, preferably within one month of receipt of a certified copy, and disposed of the writ without deciding entitlement.

FACTUAL SUMMARY

M/s Matrumal Dhannalal Oil Mill, through partner S.K. Lohia, filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others. The mill had submitted a representation on 8 May 2014 to the second respondent claiming release of interest on its security deposit under Section 47(4) of the Electricity Act, 2003 and Clause 4.20 of the Electricity Supply Code, 2005. At the hearing the only relief pressed was that this representation be disposed of.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

interest on security deposit — disposal of representation

HOLDING

Where the consumer pressed only for disposal of a representation seeking interest on security deposit under Section 47(4) of the Electricity Act, 2003 and Clause 4.20 of the Supply Code, 2005, the Court directed the fourth respondent to dispose of the representation in accordance with law by a reasoned order, preferably within one month of receipt of a certified copy, and disposed of the writ without deciding whether interest was payable. ¶ 1

PRINCIPLE TAGS

s47-4-interest-on-security-at-bank-rate-from-enactment

The petitioner mill pressed only for disposal of its 8 May 2014 representation seeking interest on security deposit under Section 47(4) of the Electricity Act, 2003 and Clause 4.20 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INTEREST ON THE SECURITY DEPOSIT WAS PAYABLE UNDER SECTION 47(4) OF THE ELECTRICITY ACT, 2003 AND CLAUSE 4.20 OF THE SUPPLY CODE, 2005, AND IN WHAT AMOUNT.

¶ 1